

Evidence Overview

What is “Evidence”

“1. Any object or information, other than legal submissions, which tends to prove or disprove the existence of a fact in issue. There are several types of evidence that can be tendered or adduced at a trial: for example, direct, circumstantial, oral, documentary, real, indirect, original, derivative, primary, secondary, prima facie, expert, opinion, confessional, sworn, and unsworn.

2. The body of law regulating the ascertainment of facts in litigation. Evidence law operates to apply rules of proof as a constraint upon the adduction of facts in civil and criminal trials; for example, hearsay evidence, similar fact evidence, illegally obtained evidence, corroborative evidence, opinion evidence, identification evidence, and non-testimonial evidence”: *Butterworths Australian Legal Dictionary*

Rules of Evidence

1. Relevance (the Main Inclusionary Rule)

This is the *first and fundamental rule* that applies to all evidence adduced. Subject to the following exclusionary rules, the general rule is **if an item of evidence is sufficiently relevant to a fact in issue or to the credit of the witness then testifying, then it is admissible. Evidence insufficiently relevant is inadmissible.** “Evidence is relevant or it is not. If the evidence is not relevant, no further question arises about its admissibility. Irrelevant evidence may not be received”:

Smith v The Queen (2001) 206 CLR 650 at 653.

- Evidence is relevant to a fact in issue if it has probative value; that is, if it renders that fact in issue either more or less probable. Facts in issue are those that must be established to prove a charge and are determined by: the charge; the plea; substantive rules of law; and the way the case is conducted.
- Under Victorian law, there is a distinction between “weight” and “admissibility”. Weight of evidence is a question of fact for the jury (trier of fact) to determine. It refers to how much reliance the jury places on the evidence, or “the degree of probative force” the evidence has. Admissibility is a question of law for the judge (trier of law) to determine. There are exceptions, but typically, “admissibility” is *not* affected by the “weight” of evidence.

2. Exclusionary Rules

Character	Character Conduct on occasions other than in respect of offence under inquiry — includes priors/disposition	Exceptions Propensity evidence (including similar fact evidence) — if the court considers that in all the circumstances it is just to admit it, despite prejudicial effect: <i>Crimes Act</i> s 398A Essential element of offence eg Drive whilst disqualified; Loitering near schools; Prohibited person possess firearm Cross-examination of defendant who adduces evidence of own good character or conducts case so as to cast imputations on the character of prosecution witnesses: <i>Crimes Act</i> s 399(5) Rebuttal — when defendant adduces evidence of good character but does not give evidence To increase penalty at end of case Statutory provisions eg <i>Bail Act</i> s 8(c); <i>Vagrancy Act</i> s 9 <i>Res gestae</i>
Hearsay	Hearsay Out of court statement made by person other than the witness presently testifying to establish truth of statement <i>not</i> merely that it was said	Exceptions - At common law: - Person since died: - dying declaration - duty to report - Admissions and confessions ie. statement that is adverse to defendant’s case <i>Res gestae</i> - By statute: <i>Evidence Act</i> 1958 — public documents; books of account; business records; computer statements; specific provisions eg <i>Drugs, Poisons & Controlled Substances Act</i> s 120; <i>Road Safety Act</i> ss 58(2) & 84
Opinion	Opinion Inference or conclusion drawn from observed fact — usually not relevant, it is for court to draw inferences and reach conclusions. Does not include descriptive statements — or evidence of beliefs regarding existence of fact(s) in issue	Exceptions Expert: - Must be qualified to satisfaction of the court - Area of expertise must be shown to exist - The factual bases of opinions must be formally proved Court must be unqualified to draw the inferences - Must not relate to ultimate fact in issue Court may reject evidence even if uncontradicted Non-expert. Opinion from common experience — must be relevant and have probative value
Privilege	Privilege Applies to witnesses or production of documents. Attaches to person in whose interest it operates, who may waive.	Forms of Self-incrimination. Does not apply to defendant as witness being questioned about offences under inquiry. Witnesses can refuse to answer questions that would render them liable to punishment for treason or an indictable offence Public interest. Prohibits disclosure of documents which may adversely affect good government Legal Professional. Attaches to client, only applies to confidential communications re actual or anticipated litigation, if waived must divulge communication Informers. Police not compelled to identify informers unless this would positively establish innocence of accused Other. Doctor/patient — civil cases only; clergy confessions
Judicial Discretion	Judicial Discretion Operates to exclude otherwise admissible evidence. Exercised after taking into account all relevant facts and giving appropriate weight to each	Grounds Prejudice; where prejudicial effect outweighs probative value Unfairness; against defendant, usually confined to confessional evidence Illegally/improperly obtained; obtained as result of entrapment or by using practice that is illegal or contrary to rules of practice

3. Supplementary Inclusionary Rule

Res Gestae	Res Gestae This doctrine permits facts accompanying the incident under investigation to be given in evidence, and thereby override some of the exclusionary rules	Effects Character. May operate to include normally prejudicial evidence because it has heightened relevance sufficient to overcome the prejudice, where such evidence forms part of the incident under investigation Hearsay. Must be sufficiently contemporaneous with transaction under investigation — less chance to concoct, relevant to maker’s state of mind Opinion. Contemporaneous opinions, ‘shame’ reaction Prior consistent statements. Spontaneous and contemporaneous, may be admissible to explain relevant acts
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